15. **शक्तियां** : भारतीय पुरातत्व सर्वेक्षण को समय-समय पर इस नीति में यथापेक्षित संशोधन, सुधार अथवा आशोधन करने का अधिकार है। भारतीय पुरातत्व सर्वेक्षण को किसी स्मारक विशेष के परिरक्षण अथवा संरक्षण के हित में उस स्मारक के भीतर लाइसेंसधारी फोटोग्राफरों के क्रिया-कलापों को अस्थायी अथवा स्थायी रूप से स्थगित करने का भी अधिकार है।

परिशिष्ट-I

लाइसेंसधारी फोटोग्राफर के लिए निर्धारित दरें और शुल्क

(पेरा 12.5 देखें)

क्रम सं.	**विवरण**	**मुद्रित रूप/इलेक्ट्रॉनिक अंतरण**	**दरें और शुल्क**
1.	हार्ड कॉपी पिरंटर पेपर क्वालिटी साईज	हार्ड कॉपी	रूपए प्रति कॉपी
		पोस्ट कार्ड आकार	25/- रु.
		साईज 4X6 इंच	30/- रु.
		साईज 5X7 इंच	40/- रु.
		साईज 6X8 इंच	50/- रु.
		साईज 8X12 इंच	80/- रु.
2.	सॉफ्ट कॉपी अंतरण	सीडी	25 फोटो तक के अंतरण के लिए 100/- रु. और उसके बाद 4/- रु. प्रति फोटो (सीडी की लागत को छोड़कर)
3.	सॉफ्ट कॉपी अंतरण	डीवीडी	25 फोटो तक के अंतरण के लिए 100/- रु. और उसके बाद 4/- रु. प्रति फोटो (डीवीडी की लागत को छोड़कर)
4.	सॉफ्ट कॉपी अंतरण	ई-मेल सहित किसी अन्य रूप में डाटा अंतरण	25 फोटो तक के अंतरण के लिए 100/- रु. और उसके बाद 4/- रु. प्रति फोटो

नोट : 1. फोटोग्राफ कम से कम 165 जीएसएम तक के फोटोग्राफी कागज पर दिये जायेंगे।

2. उपर्युक्त विनिर्दिष्ट दरों को विभागीय समिति की सिफारिश के अध्यधीन समय-समय पर संशोधित किया जा सकता है।

राकेश सिंह लाल, अतिरिक्त महानिदेशक

MINISTRY OF CULTURE

(Archaeological Survey of India)

NOTIFICATION

New Delhi, the 24th May, 2017

POLICY

Subject: The Policy for Archaeological Survey of India Photographers to perform within Centrally Protected Monuments

F. No. 29/5/2015-M (Pt).—To regulate and administer licences required under Rule 8(d) of the Ancient Monuments and Archaeological Sites and Remains Rules, 1959 for photographers to perform within centrally protected monument for monitory consideration, Archaeological Survey of India formulates a policy on the subject as under.

Introduction & Objective

Archaeological Survey of India (ASI), under the Ministry of Culture, is the premier organization for archaeological researches, protection, conservation, preservation and maintenance of ancient monuments and archaeological sites & remains of national importance, regulating archaeological activities in the country, conducting exploration and excavation, development and maintenance of museums, epigraphical researches and publication, implementing the Ancient Monuments and Archaeological Sites and Remains (AMASR) Act, 1958, and the Antiquities and Art Treasures Act, 1972, etc.

ASI administers and manages 3686 ancient monuments and archaeological sites and remains of national importance through its 29 Circles and 3 Mini-circles as per the provisions of AMASR Act, 1958 and Rules, 1959 made there under.

Photography within the premises of Centrally Protected Monuments, by charging certain fee from visitors, attracts the provisions of the Ancient Monuments and Archaeological Sites and Remains Rules, 1959. Rule 8(d) of AMASR Rules, 1959 provides for the requirement of a license from an Archaeological Officer for taking photographs of visitors against a certain fee within the premises of Centrally Protected Monuments.

The provision of Rule 8(d) is reproduced here under:-

Rule 8(d) :*No person shall within a protected monuments hawk or sell any goods or wares or canvas any custom for such goods or wares or display any advertisement in any form or show a visitor round or take his photograph for monetary consideration, except under the authority of, or under, and in accordance with the conditions of, a licence granted by an archaeological officer*.

At present the above quoted Rule is in force under implementation by the ASI and shall be applicable for the purposes of this Policy document.

2. Scope and effect

2.1 Individuals having necessary license for undertaking photography for monetary consideration shall be known as **"ASI licensed photographer"** who shall be authorized and permitted to work within the premises of centrally protected monument or group of monuments, for which he is licensed.

2.2 The assessment of number of photographers for each monument or group of monuments will be determined on the basis of foot-fall, popularity, growth potential, extent and size of the monuments/group of monuments. Such assessment for the aforesaid purpose shall be done every five years by the Archaeological Survey of India.

2.3 The license will be granted to individuals only after following the due process of selection. However, no license shall be granted to any firm or association of persons, or society, or company or any other body corporate.

2.4 Archaeological Survey of India shall be responsible for conducting the test for issuing license and for working out the mechanism/modality for the same. Those who qualified the test to be conducted under this policy shall only be granted the license and shall accordingly be entitled to conduct photography work for monetary consideration within the centrally protected monuments.

2.5 Date of Effect : The policy shall came into the force from the date on which it formally notified by ASI. It shall not have retrospective effect.

3. Selection criterion.

3.1 Educational Qualification: following qualification is recommended.

Educational qualification	**Experience**
(a) Matriculate/10th pass	Experience in Photography at tourist places.
And	
(b) (i) One year diploma in photography	In absence of one year diploma five years experience in photography in tourist places is

from recognized institute OR (ii) Five years experience in photography in tourist places	required.

3.2 **Age Limit.**

(a) The Individual should be minimum 18 years of age at the time of submission of application for a fresh license.

(b) The license of an ASI licensed photographer, who has attained 60 years of age, shall thereafter be renewed subject to medical fitness test and a report certifying his fitness.

3.3 **Other conditions.**

(a) He should be a citizen of India.

(b) He should have clean Police record and should not have any criminal case pending against him/her.

(c) He should not have been convicted / penalized in the past.

(d) Preference shall be given to local candidate.

3.4. Domicile Proof.

(a) Candidate interested to work as ASI licensed photographer shall have to submit proof of residence of the State in which the monument / site is situated.

(b) Candidate have to submit proof of the Domicile with the application.

(c) The following are recommended as documentary proof for the purpose of

Domicile certificate:

(i) Certificate of proof of Residence by the competent authority (not below the rank of Tehsildar)

And

(ii) copy of Passport duly self-attested

(iii) copy of Voter Identity Card duly self-attested.

(iv) copy of Ration Card duly self-attested with copy of attested photo ID proof.

4. Process of selection.

4.1 Applications shall be invited through open advertisement specifying the number of ASI licensed photographers with respect to specific monument or group of monuments.

4.2 Wide publicity shall be given while inviting applications for grant of license/s and sufficient time shall be given for submitting applications.

4.3 Candidates shall submit their application in the prescribed Form, as specified by the Archaeological Survey of India. The application should be accompanied by self-attested photocopies of all documents required as proof of their eligibility and in no case applicants shall be allowed to submit any additional document/s as such proof at a later stage. A declaration cum undertaking shall be submitted by an applicant in support of his application declaring that the information furnished by him is true and correct and in the event of any information being found to be false his license shall be liable to be cancelled without prejudice to any other applicable law.

4.4 The process of selection shall comprise of written test, practical and viva voce.

4.5 ASI shall specify the nature, manner and mode of test to be conducted.

4.6 The entire process shall be conducted in a fair and transparent manner.

4.7 Individual may apply for only one license in respect of a specific monuments or a group of monuments. Issuance of either category of license shall be a bar for issuance of license in the other category.

4.8 Individuals shall have to submit fee, as specified under order by ASI for the examination.

5. Written Test, Practical and Viva Voce

5.1 Examination for selection of required numbers of candidates for grant of licenses shall consist of written Test, Practical and Viva Voce.

5.2 Archaeological Survey of India shall formulate written test and Practical with a view to test the knowledge and skill of candidates on general awareness, photography, computer handling, etc.

5.3 Archaeological Survey of India shall conduct written test, practical and Viva Voce for selection of candidates.

5.4 The practical examination and Viva Voce shall be conducted through a committee comprising of not less than three members, out of them at least one should be from the field of photography, as Archaeological Survey of India may deem fit and proper.

5.5 On completion of written test, practical and viva-voce, ASI shall publish a list of successful candidates for grant of licenses for monument specific and group of monuments specific photographers. Publication of the results of the examination shall not vest any right upon the successful candidates to be appointed as licensed photographers. License being in the nature of permission for photography in centrally protected monuments under the jurisdiction of ASI, it shall have the discretion to grant or not grant such license as it may deem fit keeping in view the interest of the monument or group of monuments.

6. Issuance of licenses

6.1 On completion of selection process, License shall be given to successful candidates by the Archaeological Survey of India.

6.2 Successful candidates shall be given license by the Archaeological Survey of India under Rule 8 (d) of AMASR Rules, 1959.

6.3 All ASI licensed photographers shall be issued with appropriate ID cards.

7. Renewal of license

7.1 Every license shall be renewed annually subject to applicable policy/guidelines and/ or terms and conditions, if any.

7.2 The renewal of license shall not be automatic. A license shall be renewed subject to Pending complaints, if any, against that licensed photographer who intends to renew his license and shall be taken into account at the time of renewal.

7.3 Renewal cannot be claimed as a matter of right.

7.4 Archaeological Survey of India shall be entitled to charge a fee for renewal of guide license, as specified by order, from time to time.

8. **License fee :** Every application for grant of license or renewal of license shall be accompanied by the following fees to be submitted in the manner as may be specified by ASI:-

(a) For World Heritage Monument –Rs. 25, 000/-

(b) For ticketed and other non-ticketed monument – Rs. 15, 000/-

9. Renewal of license upon attaining 60 years:

9.1 After attaining the age of 60 years the ASI licensed photographer shall have to undergo a Medical Fitness test and obtain a certificate from a Registered Medical Practitioner (RMP) certifying that he is both physically and mentally fit to perform duties of a licensed photographer, before renewal of license.

9.2 No renewal of license of a licensed photographer who has attained the age of 60 years shall be granted without such fitness test and the necessary medical certificate.

9.3 The retirement age for Licensed Photographers shall be 65 years.

9.4 A licensed photographer seeking to renew his license after attaining 64 years of age shall be deemed to have been licensed for the balancing remaining period of time till he attains 65 years of age, whether or not such condition is specifically mentioned in the license at the time of such renewal or in the renewed license.

10. Loss of license/ID : In case of loss or theft of license or ID the concerned photographer shall immediately inform the in-charge of the monument in writing and also give written information of such loss or theft to local police station. In case of loss or theft of group of monuments specific license, the in-charge of the monument in whose jurisdiction such license is reported to have been lost or stolen shall be informed.

11. Duplicate license/ID:

11.1 For Duplicate license or ID card, as the case may be, the candidate shall make an application to the Archaeological Survey of India for the purpose in the format as specified by the ASI.

11.2 Archaeological Survey of India may charge a fee for issue of duplicate license or ID card as the case may.

11.3 After completing the required process, duplicate license or ID card shall be issued to the candidate, which shall not be later than 30 days from the date of his application.

12. Management of ASI licensed photographers.

12.1 Archaeological Survey of India may specify and restrict the total number of licensed photographers who may be permitted to operate within a specific monument or a group of monuments.

12.2 Archaeological Survey of India reserves the right to vary, reduce or increase the number of licensed photographers with respect to any monument or group of monuments as may be required and deemed fit by ASI depending upon change of attending circumstances or for any other reason or reasons, necessitating such variation or need for change in the number of photographers operating as ASI licensed photographers.

12.3 Archaeological Survey of India shall specify detailed guidelines, dos and don'ts for the licensed photographers within premises of the monument. However, the following shall be treated as serious misconduct on the part of a licensed photographer:-

(a) Misbehaviour or altercation with tourists/visitors or threatening them in any manner whatsoever; or

(b) Charging tourists/visitors for photographs beyond the specified rates; or

(c) Omitting or neglecting to provide printed copies of photographs to tourists/visitors despite specific request; or

(d) Stealing or removing or conspiring to steal or remove any belonging or asset of tourists /visitors; or

(e) Indulging in or getting involved in any other commercial consideration by way of commission or otherwise for any other services or goods with tourists /visitors except for photography and services relating thereto; or

(f) Inducting visitors/tourists inside the monument in breach of the rules of the concerned monument; or

(g) Operating as tourist guide; or

(h) Action taken up in violation of any provisions of AMASR Act, 1958 or Rules, 1959; or

(i) Breach of trust or any action not in favour of Archaeological Survey of India; or

(j) Any other grave misconduct bringing the monument into disrepute or endangering the safety or well-being of tourists or visitors.

12.4 Archaeological Survey of India shall specify other conditions required or do's & don'ts to be followed or imposed for smooth functioning of the licensed photographers in monuments in the interest of visitors/tourists.

12.5 **Rates and Charges** : A licensed photographer shall give to the visitor or tourist duly printed copies of the photographs as requested by the visitor or tourist against a valid receipt. A licensed photographer shall not charge any other consideration whether in cash or kind or otherwise for services rendered by him except for rates and charges as mentioned in the APPENDIX hereto. In addition to the printed copies of photographs, a licensed photographer shall also make electronic transfer of the images of the photographs, if requested by the visitor /tourist. The charges for such electronic transfer of all photographs taken or clicked by the licensed photographer shall not exceed as specified in the APPENDIX.

12.6 **Penalty** : A licensed photographer shall be liable for penalty for any misconduct as stated in paragraph 11.3 above. The following penalties may be imposed :

(a) In case of first misconduct - a fine of Rs. 5000/-

(b) In case of second misconduct–temporary suspension of license for a period not exceeding three months;

(c) In case of third misconduct–suspension of license for a period of one year and forfeiture of license fee; in such a case license shall have to be renewed afresh with payment of requisite license fee.

(d) In case of fourth misconduct -cancellation of license and blacklisting.

Provided that for the purpose of considering the seriality of misconduct viz. first, second, third and fourth misconduct the period of reckoning shall be 5 years.

12.7 Powers for suspension or cancellation of license and blacklisting shall rest with the Director General, ASI for final decision.

12.8 Archaeological Survey of India shall be entitled to regulate the functioning of licensed photographers and their activities within the premises of monument of national importance.

12.9 The Superintending Archaeologist of a Circle shall have the right to bar the entry of any ASI licensed photographers on grounds of misconduct or other grounds of misbehaviour with tourists or any other like reason or in the interest of safeguarding the welfare of the monument and the tourists without prejudice to any other action or remedy as may be available under this policy or otherwise under the laws of the land.

12.10 The Superintending Archaeologist of a Circle shall have the right to recommend suspension or cancellation & blacklisting of a license on the grounds as mentioned in the preceding paragraph or for any other misconduct, duly recording reasons there for.

12.11 No license shall be suspended or cancelled & blacklisted without giving reasonable opportunity to the concerned photographer to present his defense, if any.

13. **Feedback :** ASI shall put in place a mechanism to collect feedback from visitors on activities of ASI licensed photographer within the premises centrally protected monuments.

14. **Publicity:** ASI shall take steps for making adequate publicity not only concerning the monuments under its protection but also the information about ASI licensed photographers and their availability.

15. **Powers:** ASI reserves the right to amend, alter or modify this policy as may be required, from time to time. ASI also reserves the right to temporarily or permanently suspend operation of licensed photographers within a particular monument in the interest of the preservation or conservation of the monument.

APPENDIX-I

Prescribed Rates and charges for Licensed Photographer

(See para 12.5)

Sl. No.	Description	Print mode/electronic transfer	Rates & Charges
1.	Hard Copy Print Paper Quality Size	Hard Copy Print	Rupees per copy
		Post card size	Rs.25/-
		Size 4 X 6 inches	Rs.30/-
		Size 5 X 7 inches	Rs.40/-
		Size 6 X 8 inches	Rs.50/-
		Size 8 X 12 inches	Rs.80/-
2.	Soft Copy Transfer	CD	Rs. 100/- for Transfer upto 25 photo and thereafter Rs. 4/- per photo (excluding cost of CD)
3.	Soft Copy Transfer	DVD	Rs. 100/- for Transfer upto 25 photo and thereafter Rs. 4/- per photo (excluding cost of DVD)
4.	Soft Copy Transfer	Any other mode of data transfer including e-mail	Rs. 100/- for Transfer upto 25 photo and thereafter Rs. 4/- per photo

Note : 1. Paper for providing photographs shall be on photography paper of not less than 165 GSM.

2. The rates specified above may be revised from time to time subject to the recommendation of Departmental Committee.

RAKESH SINGH LAL, Addl. Director General

RAKESH SUKUL Digitally signed by RAKESH SUKUL
Date: 2017.05.27 15:13:56 +05'30'

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13. प्रधान नीति के खंड 9 (खंड शीर्षक) के लिए निम्नलिखित खंड (खंड शीर्षक) प्रतिस्थापित किया जाएगा-

> **"9. 60 वर्ष की आयु प्राप्त कर लेने पर लाइसेंस का नवीकरण अथवा पुन: सत्यापन :"**

14. प्रधान नीति के खंड 11.1 के लिए निम्नलिखित खंड प्रतिस्थापित किया जाएगा-

> "**11.1** लाइसेंस या पहचान पत्र, जैसा भी हो के प्रतिरूप (डुप्लीकेट) के लिए अभ्यर्थी को इसके चोरी होने अथवा गुम हो जाने की पुलिस शिकायत/एफआईआर की प्रति सहित भारतीय पुरातत्व सर्वेक्षण द्वारा विहित प्रपत्र में इस उद्देश्यार्थ भारतीय पुरातत्व सर्वेक्षण को आवेदन देना होगा।"

15. प्रधान नीति के खंड 12.3 के उप-खंड (ख) के लिए निम्नलिखित उप-खंड प्रतिस्थापित किया जाएगा-

> "(ख) पर्यटकों/आगन्तुकों से फोटोग्राफ के लिए विनिर्दिष्ट दरों से अधिक पैसे लेना अथवा निम्नस्तर के फोटोग्राफ प्रदान करना", अथवा

16. प्रधान नीति के खंड 12.4 को निम्नलिखित खंड से प्रतिस्थापित किया जाएगा-

> "**12.4.** भारतीय पुरातत्व सर्वेक्षण, आगंतुक/पर्यटकों के हित में स्मारकों के भितर कार्य करने संबंधी प्रणाली को सुचारू रूप से चलाने के लिए अथवा 'क्या करें' और 'क्या न करें' या लाइसेंसधारी फोटोग्राफरों के लिए लगाई जाने वाली अन्य शर्तों सहित शिकायतकर्ता और फोटोग्राफर के मध्य किसी विवाद के समाधान, को विनिर्दिष्ट करेगा।"

राकेश सिंह लाल, अतिरिक्त महानिदेशक

फुट नोट: प्रधान नीति की अधिसूचना दिनांक 24.05.2017 के द्वारा भारत का राजपत्र में प्रकाशित हुए थे।

MINISTRY OF CULTURE

(ARCHAEOLOGICAL SURVEY OF INDIA)

NOTIFICATION

New Delhi, the 17th July, 2018

Subject : The Policy for Archaeological Survey of India Photographers to perform within Centrally Protected Monuments (amendment regarding)

F. No. 29/5/2015-M(Pt).—To regulate and administer licences required under Rule 8(d) of the Ancient Monuments and Archaeological Sites and Remains Rules, 1959 for photographers to perform within centrally protected monument for monetary consideration, Archaeological Survey of India (ASI) has formulates a Policy on the subject and notified on 24.05.2017 in the Gazette of India Part 1 Section I (hereinafter referred to as the principal Policy).

Now, further to amend the said principal Policy, additions and changes are made as under.

1. For clause 2.5 of the principal Policy, following shall be substituted-

> "**2.5** The policy shall come into force from the date on which it is formally notified by the ASI."

2. After clause 2.5 of the principal Policy, the following clauses shall be inserted-

> "**2.6** Any person/candidate interested to carry out photography at ASI monuments for monetary consideration shall have to obtain licence under this policy from Director General, ASI.
>
> **2.7** Any Licences granted by ASI prior to 2012 shall have to be revalidated. Revalidation will be subject to photographer undergoing refresher courses with test conducted by ASI.
>
> **2.8** Nominee Photographer working on the basis of any nomination / authorization (ID Card, etc.) given by ASI, prior to 2012, against validly granted licence of ASI shall be considered after revalidation by ASI. Nominee Photographer cannot further transfer his nomination to any other individual."

3. For clause 3.1 (clause heading) of the Principal Policy, following clause (clause heading) shall be substituted-

> "**3.1** Educational Qualification for fresh candidates: Following qualification is recommended"

4. After sub-clause (c) of the clause 3.2 of the principal Policy, the following clause shall be inserted-

> "(c) **Age Limit. :** Individual, who has attained 60 years of age may also apply subjected to submission of medical fitness certifying his fitness."

5. For sub-clause (c) of clause 3.4 of the principal Policy, the following clauses shall be substituted-

> "(c) One of the following documents is recommended as documentary proof for the purpose of Domicile Certificate:
>
> (i) Certificate of proof of residence by the competent authority (not below the rank of Tehsildar),
>
> (ii) copy of Passport, duly self-attested,

(iii) copy of Voter Identity Card or Aadhar Card, duly self-attested,

(iv) copy of Ration Card, duly self-attested with copy of attested photo ID proof."

6. For clause 4 (clause heading) of the principal Policy, the following clause (clause heading) shall be substituted-

"**4.** Process of selection for fresh candidates"

7. For clause 4.5 of the principal Policy, the following clause shall be substituted-

"**4.5** ASI shall specify the nature, manner and mode of the test and place where the test shall be conducted."

8. For clause 7 (clause heading) of the principal Policy, the following clause (clause heading) shall be substituted-

"**7.** Renewal and Revalidation of licenses"

9. For clause 7.3 of the principal Policy, the following clause shall be substituted-

"**7.3** Renewal or Revalidation cannot be claimed as a matter of right."

10. For clause 7.4 of the principal Policy, the following clause shall be substituted-

"**7.4** Archaeological Survey of India shall be entitled to charge a fee for renewal **or** Validation or Revalidation of license, as specified by order, from time to time."

11. After clause 7.5 of the principal Policy, the following clauses shall be inserted-

"**7.5** All valid licences granted by ASI prior to 2012 shall be acknowledged under this policy subject to revalidation, wherever necessary.

7.6 The licenses granted by ASI prior to 2012 shall require to be revalidated subject to the condition that the candidate has to undergo refresher course with test conducted by ASI. Further, Nominee Photographer falling under clause 2.8 shall have to undergo refresher course with test conducted by ASI.

7.7 Old licenced photographer or Nominee Photographer shall have to pass the test after completion of refresher course for validation or revalidation of his/her licence.

7.8 Each candidate shall be give maximum 3 attempts to clear the refresher course with test.

7.9 Archaeological Survey of India shall specify the manner, duration and place where the refresher course with test to be conducted."

12. For clause 8 of the principal Policy, the following clause shall be substituted-

"**8. Licence fee :** Every application for grant of licence or renewal of licence or validation or revalidation of licence shall be accompanied by the following fee to be submitted in the manner as may be specified by ASI.

(a) For World Heritage Monument - Rs. 25,000/-

(b) For ticketed and other non-ticketed monument – Rs. 15,000/-"

13. For clause 9 (clause heading) of the principal Policy, the following clause (clause heading) shall be substituted-

"**9.** Renewal or revalidation of licence upon attaining age of 60 years."

14. For clause 11.1 of the principal Policy, the following clause shall be substituted-

"**11.1** For Duplicate license or ID card, as the case may be, the candidate shall make an application to the Archaeological Survey of India for the purpose in the format as specified by ASI with copy of police complaint/FIR on its theft or loss."

15. For sub-clause (b) of clause 12.3 of the principal Policy, the following sub-clause shall be substituted-

"**(b)** Charging tourist/visitor for photography beyond specific rates or providing low quality photographs, or"

16. For clause 12.4 of the principal Policy, the following clause shall be substituted-

"**12.4** Archaeological Survey of India shall specify other conditions required or do's & don'ts to be followed or imposed for smooth functioning of the licensed photographers in monuments in the interest of visitors/tourists including dispute resolution if arises between complainant and photographer."

RAKESH SINGH LAL, ADDL. Director General

Foot Note: The principal Policy was first published in the Gazette of India Extraordinary, on 24.05.2017 in Part 1 Section 1.

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